

Chief Justice's Court

Civil Misc. Expedite Application No. 135851 of 2010

IN

Case :- WRIT - C No. - 18065 of 2006

Petitioner :- Abdul Shakoor

Respondent :- Uttar Pradesh Power Corporation Ltd. And Others

Petitioner Counsel :- Govind Krishna

Respondent Counsel :- W.H. Khan,A.K.Mehrotra,S.C.

Hon'ble Ferdino Inacio Rebello,Chief Justice

No case for out of turn hearing is made out.

Application stands rejected.

(F.I. Rebello,CJ)

Order Date :- 30.7.2010

RK

Court No. - 35

Case :- WRIT - C No. - 18065 of 2006

Petitioner :- Abdul Shakoor

Respondent :- Uttar Pradesh Power Corporation Ltd. And Others

Petitioner Counsel :- Govind Krishna

Respondent Counsel :- W.H. Khan,A.K.Mehrotra,S.C.

Hon'ble Sunil Hali,J.

Heard in part.

As prayed put up on 27.9.2011. Counsel for the petitioner is directed to inform about the date to the counsel for the respondents.

Order Date :- 23.9.2011

RKS/

Court No. - 18

CIVIL MISC REVIEW APPLICATION NO. 330582 OF 2011

IN RE

Case :- WRIT - C No. - 18065 of 2006

Petitioner :- Abdul Shakoor

Respondent :- Uttar Pradesh Power Corporation Ltd. And Others

Petitioner Counsel :- Govind Krishna

Respondent Counsel :- W.H. Khan,A.K.Mehrotra,S.C.

Hon'ble Sunil Hali,J.

Issue notice to respondents returnable within a period of two weeks.

List immediately after two weeks. Implementation of the judgement and order dated 27.9.2011 shall remain stayed for this period of two weeks.

Order Date :- 7.2.2012

RKS/

Court No. - 26

Case :- WRIT - C No. - 18065 of 2006

Petitioner :- Abdul Shakoor

Respondent :- Uttar Pradesh Power Corporation Ltd. And Others

Petitioner Counsel :- Govind Krishna

Respondent Counsel :- W.H. Khan,A.K.Mehrotra,S.C.

Hon'ble Sunil Hali,J.

Office is directed to report as to whether the notice has been served or not.

List this case in the next week.

Order Date :- 23.4.2012

RKS/

Court No. - 41

Case :- WRIT - C No. - 18065 of 2006

Petitioner :- Abdul Shakoor

Respondent :- Uttar Pradesh Power Corporation Ltd. And Others

Petitioner Counsel :- Govind Krishna, Arvind Srivastava

Respondent Counsel :- W.H. Khan, A.K. Mehrotra, H.P. Dubey, S.C.

Hon'ble Sunil Hali, J.

Put up tomorrow i.e. on 1.11.2012 as unlisted.

Order Date :- 31.10.2012

Manoj

Court No. - 41

Case :- WRIT - C No. - 18065 of 2006

Petitioner :- Abdul Shakoor

Respondent :- Uttar Pradesh Power Corporation Ltd. And Others

Petitioner Counsel :- Govind Krishna, Arvind Srivastava

Respondent Counsel :- W.H. Khan, A.K. Mehrotra, H.P. Dubey, S.C.

Hon'ble Sunil Hali, J.

List this matter on 10th December, 2012.

Order Date :- 1.11.2012

Manoj

Court No. - 41

Case :- WRIT - C No. - 18065 of 2006

Petitioner :- Abdul Shakoor

Respondent :- Uttar Pradesh Power Corporation Ltd. And Others

Petitioner Counsel :- Govind Krishna, Arvind Srivastava

Respondent Counsel :- W.H. Khan, A.K. Mehrotra, H.P. Dubey, S.C.

Hon'ble Sunil Hali, J.

As prayed, list on 4.1.2013.

Order Date :- 10.12.2012

Ram Murti

Court No. - 58

Case :- WRIT - C No. - 18065 of 2006

Petitioner :- Abdul Shakoor

Respondent :- Uttar Pradesh Power Corporation Ltd. And Others

Petitioner Counsel :- Govind Krishna, Arvind Srivastava

Respondent Counsel :- W.H. Khan, A.K. Mehrotra, H.P. Dubey, S.C.

Hon'ble Bharati Sapru, J.

Office to submit service report.

Order Date :- 17.4.2013

rk

Court No. - 58

Case :- WRIT - C No. - 18065 of 2006

Petitioner :- Abdul Shakoor

Respondent :- Uttar Pradesh Power Corporation Ltd. And Others

Petitioner Counsel :- Govind Krishna, Arvind Srivastava

Respondent Counsel :- W.H. Khan, A.K. Mehrotra, H.P. Dubey, S.C.

Hon'ble Bharati Sapru, J.

Office to file service report regarding service of notice upon respondents on the review application.

Order Date :- 25.4.2013

v.k.updh.

Court No. - 58

Case :- WRIT - C No. - 18065 of 2006

Petitioner :- Abdul Shakoor

Respondent :- Uttar Pradesh Power Corporation Ltd. And Others

Petitioner Counsel :- Govind Krishna, Arvind Srivastava

Respondent Counsel :- W.H. Khan, A.K. Mehrotra, H.P. Dubey, S.C.

Hon'ble Bharati Sapru, J.

List this matter in July, 2013 to await return of notice.

Order Date :- 10.5.2013

S.P.

Court No. - 58

Case :- WRIT - C No. - 18065 of 2006

Petitioner :- Abdul Shakoor

Respondent :- Uttar Pradesh Power Corporation Ltd. And Others

Counsel for Petitioner :- Govind Krishna, Arvind Srivastava

Counsel for Respondent :- W.H. Khan, A.K. Mehrotra, H.P. Dubey, S.C.

Hon'ble Abhinava Upadhyay, J.

By this review petition the petitioner has sought review of the judgment dated 27.9.2011 on the ground that the learned Single Judge has held that even after acquittal by the Criminal Court on the charges of theft that assessment can still be made.

According to the learned counsel for the petitioner, Section 8.2(h) of the Electricity Supply Code, 2005 provides that in case of the decision of the Court that theft is not established, the charges levelled and assessment made by the licensee against the consumer or person shall be withdrawn in writing and the connection shall be restored through the original meter. The Court, however, has not dismissed the writ petition on this ground but on the basis of the availability of alternative remedy by approaching the appellate authority.

Under the circumstances, no good ground has been made out for reviewing the judgment/order dated 27.9.2011. The petitioner still has an alternative remedy of approaching the Commissioner against the order. Since the learned Single Judge has held that the petitioner can approach the appellate authority, it is provided that in case appeal is filed, firstly, shall not be rejected on the ground of delay as the petitioner has earlier approached but before a wrong Forum and secondly, the same may be decided within a period of two months from the date the said appeal is filed.

The review petition is, accordingly, dismissed.

Order Date :- 11.7.2013/SKM